Unconditionally Available Income (UAI)	Number	Page
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Revision Date:
October 1, 2025

Background:
Income is unconditionally available when the customer just needs to accept or claim it, without meeting any additional conditions beyond being eligible.

Purpose:
This section has been revised to incorporate guidance on the elimination of the requirement to apply for other benefits, often referred to as UAI, as a condition of Medi-Cal eligibility.

Policy:
Effective June 1, 2025, the Centers for Medicare and Medicaid Services (CMS) has eliminated the requirement for individuals to apply for other benefits as a condition of eligibility for all Medi-Cal programs.

The elimination of the requirement to apply for other benefits specifically applies to benefits that are income or cash-based only. Do not request that customers apply for UAI or other benefits that include but are not limited to:

- Social Security benefits (for example, retirement or disability benefits from the Social Security Administration [SSA]).
- Unemployment Insurance Benefits (UIB).
- Pensions.
- Veteran's benefits (for example, disability compensation, pensions, or education assistance).
- State Disability Insurance (SDI).

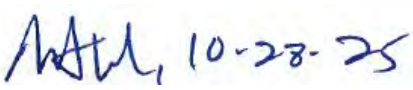
Although customers are no longer required to apply for UAI, continue to inform Medi-Cal customers about potential income from other available sources.

For guidance on other conditions of eligibility, refer to Medi-Cal Program Guide (MPG) 04.01.

References:
ACWDL 11-25, 19-13, 24-19, 25-03

Sunset Date:
This policy will be reviewed for continuance by September 30, 2028.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
October 1, 2025

Background:
Title II Retirement Benefits refers to the federal Old-Age, Survivors, and Disability Insurance (OASDI) program. Social Security consists of two separate parts, Retirement and Disability Insurance. Under OASDI, monthly benefits are paid to retired workers, their spouses and dependent children, and survivors of deceased workers (spouses, dependent children, and dependent parents).

Social Security Disability Insurance (SSDI) replaces a portion of a worker's income when a medical condition ends in death or prevents them from working for at least 12 months. Under SSDI, monthly benefits are paid to disabled workers who have not yet reached retirement age and their families.

Purpose:
This section has been revised to provide guidance on the elimination of the requirement to apply for other Unconditionally Available Income (UAI).

Policy:
Although it is no longer a condition of eligibility, all Medi-Cal customers who meet the criteria below are considered potentially eligible for OASDI. Inform Medi-Cal customers about potential income from available sources.

To apply for Social Security benefits, the customer must be:
- At least 61 years and 9 months of age and want to start receiving benefits in the next three months.
- Widow or widower.
- Surviving divorced spouse.
- Surviving unmarried child under 18.

Note: Applying for OASDI benefits before full retirement age reduces monthly payments which may result in a significant lifetime income loss.

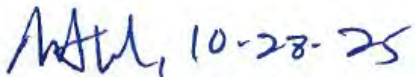
Social Security Administration (SSA) Application Process
The customer can file for SSA by:
- Applying online at www.socialsecurity.gov.
- Calling **1-800-772-1213** to make an appointment.
- Applying in person.

Procedures:
None

References:
ACWDL 11-25, 24-19

Sunset Date:
This policy will be reviewed for continuance by September 30, 2028.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
October 1, 2025

Background:
UIB is a program which provides income to eligible individuals who are out of work.

Purpose:
This section was revised to provide updated guidance on the elimination of the requirement to apply for other Unconditionally Available Income (UAI).

Policy:
Although it is no longer a condition of eligibility, inform Medi-Cal customers who are considered potentially eligible for UIB how to apply for benefits through the Employment Development Department (EDD) except for individuals who:

- Have not worked in employment covered by the Unemployment Insurance Compensation Law in the past 19 months.
- Receive UIB, have a claim pending, or have exhausted their UIB.
- Receive disability insurance benefits.
- Are ill or injured as specified in the Medi-Cal Program Guide (MPG) 04.12.04.
- Were previously denied or discontinued from UIB and have had no subsequent employment which would change the previous EDD determination.
- Are fully employed (working at least 40 hours per week).
- Do not have Satisfactory Immigration Status (SIS).
- Are full-time students.
- Are children under 16 years of age with no work history.
- Are minor consent applicants.

A. Eligible Claimants

Eligible claimants applying in California must have earned a minimum of $900 during a 12-month base period within the last 19 months and must:

- Not have quit their job without good cause.
- Not have been fired for cause.
- Be able to work and available for employment.
- Be seeking employment.

B. UIB Application Process

The customer can file a UIB claim by:

- Applying online at edd.ca.gov/unemployment/apply.
- Completing a paper Unemployment Insurance (UI) Application (Form DE 1101).
- Telephone:

(800) 300-5616 (English)	(800) 326-8937 (Spanish)	(800) 815-9387 (TTY)
(800) 547-3506 (Chinese)	(800) 547-2058 (Vietnamese)	

C. EDD Real-Time Match

The EDD Real-Time Match provides on-line access to EDD files. It can be used to determine:

- If the customer is potentially eligible to receive UIB/State Disability Insurance (SDI).
- If the customer has filed a recent claim.
- The Weekly Benefit Amount (WBA).

The current claim information from the EDD Real-Time Match can be used to verify a claim, under the condition that the information does not conflict with what the customer has stated. If there is a discrepancy with what the customer has stated, or with the Income Eligibility Verification System (IEVS) information, attempt to clarify the discrepancy utilizing reasonable explanation. If the customer is unable to provide a reasonable explanation, staff must obtain the UIB verification from the customer before approval. Refer to MPG 04.07.02S for additional guidance on reasonable explanation.

D. UIB Award Notice

Approximately 10 days after the application for UIB has been filed, the claimant will receive a computer printout from EDD. The print-out is titled "California Award." This print-out does not necessarily mean that the claimant will be entitled to receive UIB. The claimant may subsequently be denied UIB because of information obtained during the follow-up telephone interview, information from the previous employer, etc.

Should the claimant be found ineligible for UIB, they will receive a denial notice indicating the reason for ineligibility. When the claimant is found eligible, they will receive UIB benefits.

E. UIB Payments

When a claimant is found to be eligible, UIB will normally be paid the third week after the application is filed. The initial payment will generally be for one week's benefits. Benefits are issued either by check, EDD debit card, or direct deposit. The claimant can request a printout of their payment history by calling 1-866-333-4606 or online (www.edd.ca.gov/). Payment history will be mailed out by EDD within 10 days. UIB is paid every two weeks thereafter.

The same WBA will generally be paid for each week of unemployment throughout the duration of the claim. However, adjustments to the WBA will be made when either:

- Wages more than $25 occur.
- SDI eligibility occurs.
- Other internal adjustments are necessary.

F. Interstate Claims

The Interstate Benefit Payment Plan allows a person residing in one state (the agent state) to claim benefits from another state (the liable state) if they earned wages covered by Unemployment Compensation in the liable state. These claims are called Interstate Claims. The benefits are paid in approximately eight weeks by the liable state. EDD (including real-time match) does not have Interstate Claims information. Verification of benefit amounts can be obtained through documents in the customer's possession, or by writing to the unemployment insurance office in the other state.

G. Extended UIB

During periods of high unemployment, California has a special program for claimants whose regular benefits have expired or have been exhausted. This is the California Extended Duration (Cal-Ed) program. The Federal Government has a similar program of extended benefits known as Federal Extended Benefits (FED-ED). The maximum amount of an extended claim is 50 percent of the original (parent) claim. The WBA remains the same as the parent claim.

If the customer has received UIB recently, inform them to contact EDD if they wish to pursue further benefits. It takes approximately two weeks to process each claim. There are no requirements to serve a waiting week, and payment will be made for the effective date of the claim.

If at any time the wage earner becomes eligible to regular UIB, EDD will terminate the Extended Unemployment Insurance claim and require the claimant to file a new claim for UIB.

Procedure:

Inform customers of potential eligibility to UAI and apply any income received to the ongoing Medi-Cal budget.

Program Impacts:

None

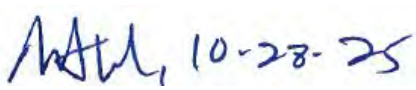
References:

ACWDL 24-19

Sunset Date:

This policy will be reviewed for continuance by September 30, 2028.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
October 1, 2025

Background:
DIB is a program which provides income to eligible people who cannot work because of illness or injury not caused by their job.

Purpose:
This section has been revised to include new guidance on the elimination of requirement to apply for Unconditionally Available Income (UAI).

Policy:
Although it is no longer a condition of eligibility for Medi-Cal, inform customers of their potential eligibility and provide guidance on how to apply for benefits.

A. Eligible Claimants
In general, eligible claimants applying in California must have earned a minimum of $300 during a twelve-month base period and must:

- Have an incapacity which was not incurred on the job.
- Be under treatment by a physician at the present time.
- Have a statement from a physician verifying incapacity.
- Have earned a minimum of $75 in a quarter within the base period.

Note: Pregnancy may qualify as an incapacity if it prevents the individual from working. After childbirth, an individual may receive DIB for six weeks, regardless of prior eligibility.

B. DIB Application Process
The process below outlines a DIB claim submission.

- Complete applicant section on form DE-250.
- Submit form DE-250 to their doctor to complete the physician section.
- Mail the application to the DIB Field Office.

When the DIB Branch of the Employment Development Department (EDD) processes the application, the customer can submit the approval notice as verification of the claim amount.

DIB is paid according to the number of days disabled rather than weekly. Benefits are issued either by check, direct deposit, or EDD debit card. The customer can request a printout of their payment history by calling 1-800-480-3287 or online (www.edd.ca.gov/). Payment history will be mailed out by EDD within 10 days.

C. Voluntary DIB Plan
If a customer qualifies for DIB and worked for an employer with an EDD-approved private insurance carrier or self-insured plan, they may be eligible for Voluntary DIB Plan benefits. Income received from Voluntary DIB Plan must be reported timely.

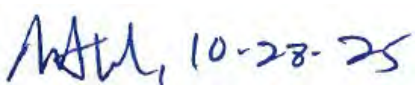
Procedure:
None

Program Impacts:
None

References:
ACWDL 11-25, 24-19

Sunset Date:
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Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
October 1, 2025

Background:
Veterans' benefits offer support which include healthcare, disability compensation, pension, education, home loans, insurance, and burial benefits and are administered by the Department of Veterans Affairs (VA). San Diego County has established the Office of Military and Veterans Affairs (OMVA) which is a section of the Health and Human Services Agency (HHSA). OMVA provides services for military veterans, their dependents, and survivors who are entitled to benefits through the VA, State of California, and other applicable agencies.

Purpose:
This section was revised to include new guidance on the elimination of the requirement to apply for other Unconditionally Available Income (UAI).

Policy:
VA benefits such as disability compensation, pensions, or education assistance are considered UAI. Although it is no longer a condition of eligibility for Medi-Cal, inform customers of their potential eligibility and provide guidance on how to apply for benefits.

The requirement to apply for veterans' health benefits remains in place whenever a member of the household is a veteran of military service, the spouse, or a dependent of a veteran. Only the person refusing to apply for and accept VA health benefits is considered ineligible for Medi-Cal.

A. MC 05 Referral Procedure
Complete the Military Verification and Referral Form (MC 05) using the information provided on the application even if the VA benefit verification has been provided. The form does not require a signature from the customer. Complete this form at intake and redetermination for each customer when they:

- Indicate they have military service.
- Are in receipt of VA benefits.
- Have a spouse, parent, stepparent, or child who is not in receipt of benefits, but have served in the United States military for any period.
- Have a dependent who has applied for or expects to receive VA benefits.
- Have a dependent (including stepchild) who is receiving VA pension, disability, or educational benefits.
- Are a disabled veteran or the dependent of a disabled or deceased veteran.
- Are currently receiving VA disability benefits and their disability has worsened.
- Are a veteran residing in a long-term care (LTC) facility.

Mail completed MC 05 forms to the OMVA at Mail Stop O-273--ATTN: OMVA. See Medi-Cal Desk Aid 93: How to Complete the MC 05.

Note: Do not delay approval pending the return of the MC 05 from OMVA if all other requirements have been met.

The MC 05 is **not** required when:

- The individual is on active duty in the military.
- The individual's service was limited to the Merchant Marine, National Guard, or Reserves.
- No legal relationship exists between the customer and the veteran or paternity cannot be established.
- A previous MC 05 completed by OMVA states that no future benefits are available to the veteran.
- A copy of a complete MC 05 was returned by OMVA within the last 45 days.
- The veteran cannot be identified by at least one of the following:
  - Social Security Number and Date of Birth.
  - Military serial number.
  - VA claim number.

When a referral is not submitted, make a journal entry documenting the reason.

B. OMVA MC 05 Response

OMVA will process all MC 05s on a flow basis, unless identified as a priority. The average response time for return of the MC 05 is one week after receipt, depending on the volume of referrals received. After the OMVA representative has determined eligibility to VA benefits, a copy of the MC 05 will be sent to the Document Processing Center (DPC) and imaged to the case.

C. Aid and Attendance (A&A) Benefits

Under certain conditions, veterans, spouses/widows of veterans, dependents and "Gold Star" parents (parents who lost a child in military action) who receive VA benefits may be entitled to additional monthly payments if they have severe physical or mental disabilities. The additional entitlement is called A&A benefits.

To qualify for A&A benefits, it must be demonstrated that the veteran, spouse/widow, or parent cannot feed or dress themselves, care for their needs, or remain out of bed all day. Blindness or confinement in an LTC facility also qualifies for A&A entitlement.

D. Unusual Medical Expenses

Under an injunction from the ***Sherman v. Griepentrog*** lawsuit, disregard that portion of a needs-based VA pension or needs-based compensation that is the direct result of an Unusual Medical Expense (UME) when determining a customer's share of cost (SOC).

Approval will not be delayed pending verification of UME. The amount of VA benefits, which is not otherwise exempt, will be counted as income when determining the SOC. When the MC 05 is returned, indicating the amount paid for UME, disregard that portion of the VA pension and if appropriate, readjust the SOC for previous months.

E. VA Claims Initiated by OMVA

The OMVA accesses HHSA files to identify Medi-Cal customers who are in LTC facilities. A Medi-Cal customer in LTC may be interviewed by OMVA staff to determine potential eligibility to VA benefits, including VA A&A payments.

If the customer appears potentially eligible for VA benefits or A&A payments, the OMVA will assist them with filing a VA claim. OMVA will complete and forward a copy to the Family Resource Center (FRC).

Once a claim has been filed, it may take up to six months for the VA to determine eligibility. Do not call OMVA to inquire about the status of a claim during the six-month period. If an eligibility determination has not been received by the end of the period, contact OMVA to inquire about the status of the claim.

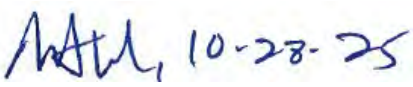
Procedure:
None

Program Impact:
None

References:
MEM Proc. 10J
ACWDL 95-29, 05-08, 16-04, 24-19, 25-03

Sunset Date:
This policy will be reviewed for continuance by September 30, 2028.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services